

ACCOUNT OPENING FORM

FOREX - CORPORATE ACCOUNT

Instructions to open your account

To complete your application, please follow these instructions:

- 1 Read** this Account Opening Form, the General Terms and Conditions, the Special Terms and Conditions for Forex, the Forex Risk Disclosure Statement and the Board resolution.
- 2 Print out and sign this Account Opening Form, the Forex Risk Disclosure Statement and the Board resolution.**
- 3 Collect:**
 - a. a certified true copy of the Client's certificate of incorporation, certificate of incumbency, certificate of good standing or extract from registry of commerce (the document must not be older than 12 months);
 - b. a certified true copy of the Client's memorandum and articles of association (the certification must not be older than 12 months);
 - c. if not covered by items a. or b. above, a certified true copy of a document evidencing the legitimacy of the persons signing the Board resolution (the document must not be older than 12 months);
 - d. a certified true copy of a **valid passport** or **other official ID document** for each authorized person (as mentioned on the Board resolution) and the person(s) signing the account opening documentation (the certification must not be older than 12 months);

Note: due to Swissquote Bank Ltd (the "Bank") being regulated and subject to anti-money laundering regulations, the passport or ID copy must be certified by a notary public or an official governmental authority which usually delivers such certification (certified true copy). Signature and photography must also be visible on the copy;
 - e. a proof of address of the Client (the document must not be older than 6 months);
 - f. Only if the Client is not a domiciliary company (i.e. the Client has a commercial activity): a Form K (Establishing of the controlling person) and simple copy of a valid passport or other official ID document for each controlling person.

Note: this does not apply to legal entities listed on a stock exchange;
- 4 Send back** the signed Account Opening Form, the signed Forex Risk Disclosure Statement, the signed Board resolution as well as all the above-mentioned documents:

Swissquote Bank Ltd
Administration
Chemin de la Crétaux 33
CH-1196 Gland
Switzerland

Should you have any questions, your Swissquote Bank Representative or Swissquote Bank's Customer Support may be reached at +41 44 825 87 77.

1. Corporate information

1.1. Corporate details

Company name :	COBOU AGENCY LLC	Legal form :	Limited Liability Company
Date of incorporation :	24/07/2025	Nature of business :	Digital distribution of educational
Place of incorporation (city) :	Wyoming		
Country of incorporation :	United States		

1.2. Registered address / Business address

Street :	41 rue des rabouts	Post code :	77144
		City :	Montévrain
		Country :	France

1.3. Contact person details

First name :	Thomas	Family name :	cogne
Phone number :		Mobile phone number :	+33629352237
Email address :	thomas.cgn74@gmail.com		

2. Account information

Trading platform(s) :	Meta Trader 5
Account currency :	USD
Estimated initial deposit :	5'000.00 USD

3. Beneficial owner

This Article 4 consists in the so-called Form A pursuant to the Agreement on the Swiss banks' code of conduct with regard to the exercise of due diligence (CDB).

The Client (the contracting partner) hereby declares that:

- ☒ it is **the sole beneficial owner** of the assets deposited in the Account(s) with the Bank covered by this Account Opening Form
- OR
- ☐ the **beneficial owner** of the assets deposited in the Account(s) with the Bank covered by this Account Opening Form **is the person listed below**. For **an individual** please specify: first name, family name, date of birth, address (including country of residence) and nationality. For **a company**, please specify: name of the company, legal form, country and date of incorporation, registered office and type of business.
- | | |
|-----------------|---------------|
| First name : | Family name : |
| Date of birth : | Nationality : |
| Street : | Post code : |
| | City : |
| | Country : |

The Client undertakes to immediately inform the Bank of any changes.

The Client confirms being aware that it is a criminal offence to deliberately provide false information on this form (**Article 251 of the Swiss Penal Code**: document forgery; such offence is punishable by a prison sentence of up to five years or a fine).

Instructions:

- Please check one box only.
- The beneficial owner is the person who is the actual, ultimate owner of the assets deposited. The beneficial owner does not necessarily have to hold a power of attorney or signing authority for the business relationship.
- This form cannot be accepted if it contains information which is imprecise or has been crossed out or otherwise deleted.
- If there are multiple beneficial owners, please complete a separate form for each beneficial owner.

4. Declaration of "non-US person" or "US person" status

The Bank has entered into a so-called "Qualified Intermediary" ("QI") Agreement and a "Foreign Financial Institution" ("FFI") Agreement pursuant to the Agreement between Switzerland and the United States of America ("USA") for cooperation to facilitate the implementation of the "Foreign Account Tax Compliance Act" ("FATCA", together with the FFI Agreement, the "FATCA Regulations") with the US tax authorities ("IRS").

In the above-mentioned context, the Client confirms that:

☒ it is a "non-US person", i.e. it has not been created, is not registered or incorporated in the US **and** it is not a US person for any other reason. Further the Client confirms that it is the beneficial owner of the securities held and the income generated therewith in accordance with US tax law. In the event of an existing double tax treaty between the USA and the client's country of incorporation or organization, the Client asks for and the Bank grants to the Client a reduction of the US withholding tax on income of US origin only when the Bank receives the requested documents. In such a case, and depending on the circumstances, the Bank is entitled to ask for additional documentation;

☐ it is a "US person", i.e. it has been created, is registered or incorporated in the US **or** it is a US person for any other reason. Further the Client confirms that it is the beneficial owner of the securities held and the income generated therewith in accordance with US tax law. If the Client is or becomes a US person, the FATCA Regulations require that the Client provides the Bank with a Form W-9. By providing a Form W-9 to the Bank, the Client accepts that the Bank shall provide, directly or indirectly, the IRS, the Bank's withholding agents and custodians, or any related parties, with confidential and personal information about the Client and its accounts with the Bank, such as the Client's identity, name and address, its Tax Identification Number ("TIN"), the account number, the account value and income and gains as well as documents such as IRS forms. The Client hereby irrevocably consents to such disclosure and fully releases the Bank from their obligations of banking secrecy, confidentiality and/or data protection under Swiss or any other applicable law(s) which might otherwise preclude the disclosure of such information ("Banking Secrecy Waiver").

In the case where the Client is not the beneficial owner of the securities held and the income generated therewith in accordance with US tax law, the Client shall inform the Bank and communicate the details about the beneficial owner.

Furthermore, the provisions of the **General Terms and Conditions** shall also apply.

5. Residence for tax purposes

On 21 July 2014, the Organisation for Economic Co-operation and Development (OECD) released a Standard for Automatic Exchange of Financial Account Information in Tax Matters. The Client understands that the Bank may need to apply enhanced due diligence procedures to record the residence for tax purposes of the Client. In the above-mentioned context and, in particular, as part of the account opening process, the Client has provided the Bank with the following information:

AEOI Classification:	Active (Non-Financial) Entity: Active Entity by income and assets, Holding Entity of a non-financial group, Start-up Entity, Entity liquidating or emerging from bankruptcy, Treasury center of Non-Financial group, Non-profit Entity
Residence:	France
Tax ID:	
Nature of Tax ID:	Taxpayer Identification Number (TIN)

☐ more than one residence for tax purposes

The Client understands that the Bank may be required to report certain Client information and, where relevant, information on the entity's controlling persons, as well as certain Client's account(s) information to the Swiss Federal Tax Administration (the "SFTA"). The Client understands that the SFTA may then pass on such information to the tax authorities of each jurisdiction for which the Client is regarded as a resident for tax purposes, but only to the extent that there is an agreement in place for the exchange of tax information between Switzerland and the other jurisdiction.

Furthermore, the provisions of the **General Terms and Conditions** shall also apply.

6. Confirmation

By signing this Account Opening Form, the Client confirms that:

- a** it has read and understood and fully accepts this Account Opening Form, the General Terms and Conditions, the Special Terms and Conditions for Forex, the Forex Risk Disclosure Statement and the Board resolution;
- b** any other Account opened in its name with the Bank in connection with a Forex Platform shall be governed by the above-mentioned documents, in their latest version;
- c** any information contained in this Account Opening Form and/or provided by the Client within the account opening process (as amended by the Client from time to time) is also applicable to the other Accounts opened with the Bank in connection with a Forex Platform, except if otherwise indicated by the Client;
- d** it understands and accepts the risks related to Forex trading, as described in the Forex Risk Disclosure Statement;
- e** it has read and understood the information on the Bank's website regarding the leverage effect, the margin requirements and the automatic liquidation of positions;
- f** the information contained in this Account Opening Form and/or provided by the Client within the account opening process is true and complete;
- g** any signature provided is genuine and any and all copies provided are true copies of the original documents;
- h** should any information contained in this Account Opening Form and/or provided by the Client within the account opening process change, it must inform the Bank immediately;
- i** the Bank reserves the right to request from the Client additional information and documents in order to satisfy legal and regulatory requirements and/or internal policies, and the Client agrees to comply with such requests;
- j** no transactions (including deposits and withdrawals) in relation to the Account will be executed in (hard) cash;
- k** it has not been provided with any recommendations/advice from the Bank to open an account and the Client requests such account opening on its own initiative and without any solicitation from the Bank;
- l** the definitions contained in the General Terms and Conditions, the Special Terms and Conditions for Forex and the Forex Risk Disclosure Statement shall apply to this Account Opening Form;
- m** this Account Opening Form, the General Terms and Conditions, the Special Terms and Conditions for Forex, the Forex Risk Disclosure Statement and the Board resolution shall exclusively be governed by and construed in accordance with substantive Swiss law;
- n** the place of performance, the place of enforcement against a client residing abroad and the exclusive place of jurisdiction for any dispute arising from or in relation to this Account Opening Form, the General Terms and Conditions, the Special Terms and Conditions for Forex, the Forex Risk Disclosure Statement and the Board resolution shall be at the seat of the Bank in Gland/VD in Switzerland. However, the Bank reserves the right to bring such proceedings before the competent courts having jurisdiction at the Client's place of residence or domicile or before any other competent court, in which case substantive Swiss law shall remain exclusively applicable.

In due consideration of the above, the Client requests the Bank to open an account in its name in accordance with this Account Opening Form, the General Terms and Conditions, the Special Terms and Conditions for Forex, the Forex Risk Disclosure Statement and the Board resolution.

Date :

First Name and Family Name :

Signature :

7. Board resolution

We as members of the Board of Directors of [REDACTED] (hereinafter the "Company") hereby certify that the Board of Directors of the Company validly adopted the following resolutions at a duly convened meeting of the Board of Directors held on [REDACTED]

After due and careful consideration of the Account Opening Form, the General Terms and Conditions, special terms and conditions of specific services, if any, and all other account opening documentation provided by Swissquote Bank Ltd (hereinafter the "Bank"), it was

Resolved that:

- the Company shall open one or more accounts (hereinafter the "Account") with the Bank;
- each of the following person(s) (hereinafter the "Authorised Persons")

	First names, Last names	Date of birth	Nationality	Position	Specimen signatures	Signature mode
1	Thomas cogne	28/02/2005	France	Managing Member		☐ Individually / ☐ Any 2 jointly
2	Wael Bousfira	26/02/1997	France	Managing Member		☐ Individually / ☐ Any 2 jointly
3	Rida Bouchoiri	07/08/2005	France	Managing Member		☐ Individually / ☐ Any 2 jointly
4						☐ Individually / ☐ Any 2 jointly

is/are authorised to open for and on behalf of the Company the Account with the Bank and to execute and deliver on behalf of the Company the Account Opening Form and any and all other documents requested by the Bank in the process of opening the Account and take any and all steps related thereto;

- the Authorised Persons shall have any and all powers to operate the Account, to transact any and all types of business with or through the Account and generally represent the Company in all of its relations with the Bank, including but not limited to the designation of additional Authorised Persons in relation to the Account and/or the relationship with the Bank;
- unless stated otherwise in writing, the Authorised Persons shall represent and act on behalf of the Company with individual signature. The Company acknowledges and accepts that the Bank will not and cannot implement and observe collective signature rights for online trading activities (such as electronic trading orders, online approval of specific contracts or disclaimers, etc.) or electronic banking activities (such as online payments). The Company acknowledges and accepts that it is solely responsible for the distribution and/or use within its own organisation of any Identification Codes (such as passwords) relating to the Account. Whoever legitimates himself/herself with the correct Identification Codes will be considered by the Bank to be at all times duly authorised by the Company to operate the Account and generally use any and all services of the Bank available to the Company;
- the Company shall certify to the Bank the information about the Authorised Persons (including the authenticity of their signatures) and shall without delay inform the Bank of any changes to such information and certify such changes to the Bank, which shall be fully protected in relying on such certifications and shall be indemnified and held harmless from any and all loss, damage, liability, claims and expenses whatsoever resulting from honouring the signature(s) of any person so certified or refusing to honour any signature(s) not so certified;
- all the foregoing resolutions and certifications shall be valid and may be relied on by the Bank notwithstanding any information to the contrary in the commercial register or any other similar register or in the Company's list of authorised signatories;
- all the foregoing resolutions and certifications shall remain in full force and effect until written notice of its amendment or rescission has been received by the Bank and that receipt of said notice shall not affect any action taken by the Bank prior thereto; and
- in the event that the Company later provides the Bank with a new list of Authorised Persons without indicating whether such new list is in addition or replaces the above-mentioned list of Authorised Persons, the Bank shall be entitled, without being obliged, to consider it as an addendum to the above-mentioned list of Authorised Persons.

We as members of the Board of Directors also hereby certify that there is no provision in the by-laws, articles of incorporation or any other the constitutive documents of the Company or any applicable laws and regulations limiting the power of the Board of Directors to adopt and carry out the foregoing resolutions and that the same are in full conformity with any and all provision of said documents or legislation, neither of which requires or provides for any further resolution, consent, authorisation, or any other act or step by anyone in order to enable the Company to proceed with requesting the opening of the Account and to make use thereof and of any other services the Bank presently offers or may in the future offer to the Company.

Date :

First Name and Family Name :

Signature :

Forex and CFD Risk Disclosure Statement

1. INTRODUCTION

1.1. This Forex and CFD Risk Disclosure Statement (the "**Disclosure Statement**") provides a description of certain risks associated with transactions on foreign exchange instruments and contracts for difference. **It does not disclose or explain all of the risks associated with transactions on foreign exchange instruments and contracts for difference. This Disclosure Statement is not a substitute for the advice of a financial expert.**

1.2. This Disclosure Statement forms an integral part of the Special Terms and Conditions for Forex and CFD and, thus, of the Agreement. Except if otherwise stated herein, the definitions set out in the General Terms and Conditions and the Special Terms and Conditions shall apply for the purposes of this Disclosure Statement.

1.3. This Disclosure Statement must be read in conjunction with the General Terms and Conditions and the Special Terms and Conditions, the Bank's website, the Trading Rules and the various prospectuses, fact sheets and other information sheets available on the Bank's website or on any Platform, which describe in more detail the risks to which the Client may be exposed.

2. THE CLIENT IS EXPOSED TO EXTREMELY HIGH RISKS

2.1. Transactions on foreign exchange instruments and contracts for difference are highly speculative, involve an extreme degree of risk and are generally suitable only for persons who can assume and sustain a risk of loss significantly in excess of the amount invested. In our experience, between 70 and 80% of retail clients (being clients that are neither professional nor institutional clients) experience losses when trading foreign exchange instruments and contracts for difference. Further, a number of transactions on foreign exchange instruments and contracts for difference may, by their nature, generate losses that are in theory unlimited. In the absence of prior intervention, the losses could greatly exceed all the Client's assets deposited with the Bank.

2.2. The Instruments have various underlying assets, such as currencies, commodities, precious metals (or "bullions"), equity securities, other securities, as well as indexes. When trading Instruments, **the Client is exposed to general risks outlined in this Disclosure Statement, but also to specific risks that relate to the underlying assets of the Instruments.** Before trading Instruments, the Client must therefore ensure that he is familiar with those underlying assets and understands the risks associated with them. The Client should also refer to the "Risks involved in trading financial instruments" brochure, which is available on the Bank's website and discusses risks associated with equity securities, precious metals and commodities, among others.

2.3. The foreign exchange market, the bullion market and the markets for the other underlying assets of the Instruments are extremely volatile. The movements of these markets are unforeseeable. The foreign exchange market, the bullion market and the markets for the other underlying assets of the Instruments may also experience periods of decreased liquidity or even periods of illiquidity. This liquidity risk may affect all the participants in the market or the Bank specifically, in particular if there are changes in the liquidity provided by the Bank's counterparties. A lower liquidity may result in very rapid and hectic price movements, in wider spreads and/or in higher rejection rates. In such circumstances, risk mitigation measures may be ineffective.

3. THE LEVERAGE EFFECT GREATLY AMPLIFIES LOSSES

3.1. The Bank may allow the Client to trade on margin. In such a case, the Client may enter into trades for amounts that are (sometimes significantly) higher than the amounts committed by the Client for the relevant trade (i.e. higher than the margin). When trading on margin, the Client uses leverage effect. **The leverage effect makes transactions highly speculative, as a small movement in prices can generate a considerable loss (or gain).**

3.2. As an example, if the Client is allowed to open a EUR/USD position of 100,000 with a leverage effect of 10x, which means that to open this position, the Client is allowed to maintain a margin of only EUR 10,000. If the EUR falls in value by 1% against the USD, the Client's losses will reach EUR 1,000, i.e. 10% of the Client's invested amount. In other words, the greater the leverage effect, the greater the risk of loss (or chance of gain). The Client should use the leverage effect that is suitable to him. The Bank does not examine whether the leverage effect used by the Client is suitable or recommended in view of the Client's situation.

3.3. The use of leverage can cause or amplify the risk that the Client will suffer losses that significantly exceed the value of the assets deposited by the Client with the Bank. Indeed, the higher the leverage, the more likely it becomes that **a small change in the price of the relevant assets (which may occur swiftly) will result in the Client's losses exceeding the margin deposited.** If the Client does not maintain sufficient other assets on his Account in such a case, **the Client will be liable towards the Bank for any amount not covered by assets held on the Account.** The Client is made aware that such situations may also occur if the Client does not use leverage but maintains positions that entail a short exposure to an asset, as the price of such asset may theoretically increase indefinitely, resulting in losses for the Client that are not limited to the invested amount.

4. POSITIONS MAY BE LIQUIDATED IF MARGIN IS INSUFFICIENT

4.1. As set forth in the Special Terms and Conditions, the Bank has set up an automated system to liquidate positions upon certain thresholds or triggers being reached (i.e. the Automatic Liquidation System). The Automatic Liquidation System is active unless otherwise agreed upon between the Bank and the Client. **There is no guarantee whatsoever that the Automatic Liquidation System will be effective.** Further, the Automatic Liquidation System is operated for the sole benefit of the Bank and is not intended to prevent losses for the Client. Accordingly, **the Client cannot rely on the Automatic Liquidation System as a tool to effectively manage risks.**

4.2. To prevent the liquidation of his positions, the Client must at all times satisfy the margin requirements set by the Bank (i.e. the Client must maintain the Required Margin). In this respect, the Client should take into account that the Bank:

- a. is **under no obligation to make any "margin call"**, meaning that the Client may not be informed if the margin deposited is insufficient or likely to become insufficient in the near future; and
- b. may **at any time amend the Required Margin and other parameters that impact margin requirements**, such as the maximum net open position limit, the maximum leverage effect applicable to the Account and the Liquidation Trigger. The Client acknowledges **that any amendment to the Required Margin or to other relevant margin parameters may (in and of itself) result in the Liquidation Trigger being reached and the Client's positions being liquidated.**

As a result, the Client should consider holding, on his Account, amounts well in excess of the Required Margin. Further, **the Client should constantly monitor his positions, as well as the Bank's margin, maximum leverage and other relevant requirements.**

4.3. Even if the Client takes precautions that appear reasonably suited to avoid the Automatic Liquidation System being triggered, **there may still be circumstances in which the Client's positions will be liquidated.** This could happen, for example, due to significant fluctuations in prices that occur so rapidly that the Client is unable to provide additional margin in time to prevent the liquidation of the relevant positions.

4.4. When the Automatic Liquidation System is triggered, it sends requests to the Bank to enter into one or several transactions for the purposes of liquidating the relevant position(s). The Bank then generally seeks to execute these transactions as soon as possible. There is however no assurance that the relevant position(s) will be liquidated immediately, or at

the pricing and liquidity conditions prevailing when the Liquidation Trigger was reached, as market conditions may change rapidly and significantly before the Transactions are executed. **Even if the Automatic Liquidation System is activated, there is therefore no assurance the Client's losses will not be higher than the margin provided.**

5. THE BANK AS COUNTERPARTY / NO BEST EXECUTION DUTY

5.1. The Client's sole counterparty for any and all Transactions is the Bank.

As a counterparty to the Bank in Transactions, the Client is exposed to the Bank's credit risk. In the event of an insolvency of the Bank, the Client's positions may be liquidated without prior notice and against the Client's wishes.

5.2. No position may be opened or closed without the Bank agreeing to enter into the relevant Transaction. **The Bank does not have any obligation to enter into Transactions.** In addition, the Trading Rules and, more generally, the terms pursuant to which the Bank agrees to enter into Transactions, may give the Bank extensive powers to initiate or terminate Transactions without consulting the Client. Further, the Bank may also suspend the operations of any Platform, or stop processing Orders sent through such Platform.

5.3. The Client acknowledges and accepts that, when entering into Transactions, the Bank is acting in its own interest and has no duty to protect the Client from losses. In particular, the Bank may continue to enter into Transactions with the Client if the Client suffers losses or if the value of the Client's assets decrease, even if it may be preferable for the Client to stop entering into such Transactions.

5.4. Further, **the Bank is not bound by any duty of "best execution" or similar requirement, and is accordingly not required to seek the best possible outcome when carrying out orders submitted by the Client. The Transactions are not conducted via an exchange, multilateral trading facility or any similar organisation.**

6. AVAILABLE TOOLS TO MITIGATE RISKS MAY BE INEFFECTIVE

6.1. To mitigate risks relating to Transactions, the Client may consider using various tools made available through the Platforms, including using different order types that trigger certain actions upon pre-defined conditions being fulfilled (e.g. prices falling below a certain level). Using these types of orders is however not a guarantee that Transactions will be entered into at the prices defined by the Client when placing the order, or that such Transactions will be entered into at all.

6.2. Depending on the circumstances, such as the liquidity available to the Bank, the Bank will not be able to execute the relevant orders at the price the Client saw or considered when placing the order. In such a case, the Client is exposed to **slippage**, i.e. the risk that a Transaction will be entered into at a price that differs from the price that the Client saw or considered when placing the order. The Client remains responsible for any Transaction executed at prices that differ from his orders.

6.3. Various events may arise over the weekend and, more generally, outside of Business Days. The effect of these events will generally be felt strongly when market participants return on the Business Day that follows the events. Since the Bank does not process orders outside of Business Days (and may cancel Orders submitted outside of Business Days), the Client will be unable to react to these events as they unfold. The Client will, in such situations, be exposed to **gapping** risk, i.e. the risk that – when trading resumes after an interruption – prices differ significantly from those prevailing immediately before the interruption. Gapping may cause considerable losses for the Client, for example by triggering the liquidation of the Client's positions.

7. SPECIAL RISKS RELATING TO FX OPTIONS

7.1. FX Options are subject to the special risks described in this Section 7, in addition to other risks relating to Instruments described elsewhere in this Disclosure Statement.

7.2. FX Options are non-standardized products created in accordance with

specifications defined by the Client. **FX Options are illiquid instruments**, there is no market for the FX Options and the Client cannot sell, assign or otherwise transfer an FX Option to a third party. The Bank does not undertake to make a market for FX Options held by the Client.

7.3. The Bank is the Client's counterparty when entering into transactions on FX Options. The Bank is under no obligation to offer prices for FX Options. This means that, when the Client acquires (or sells) an FX Option, the Client can only sell this FX Option to the Bank (or buy it back from the Bank). **In the event that the Bank does not offer prices for FX Options, the Client will be unable to benefit from price movements occurring prior to the Maturity Date**, as the Client will not be able to exit his position. Currently the Bank does not allow the Client to use order types designated to mitigate risks (e.g. stop orders) when trading FX Options. Although the Bank may allow the Client to use these types of orders in the future for FX Options too, the execution of such orders is conditional upon the Bank accepting to enter into the relevant Transaction with the Client. The Client should take these factors, as well as all other characteristics of FX Options, into account when designing and executing trading strategies involving FX Options.

7.4. FX Options are complex instruments and their pricing is based on a methodology set by the Bank in its sole discretion. The price of FX Options, as determined by the Bank, may depend on multiple factors, including the volatility of the FX Options' underlying assets. The Client acknowledges that the Bank sets the price of FX Options in its sole discretion, and that the Bank may use different exchange rates for FX Options as opposed to other Instruments.

7.5. FX Options are options on extremely volatile underlying assets and entail significant risks. **The Client may lose more than his initial deposit, e.g. if the Client is allowed to trade on margin or if the Client is selling a Call FX Option.** If the Client is the Seller of an FX Option referred to as a Call in the Offer, the Client's losses are not limited, i.e. the payment the Client may be required to make if the Bank decides to exercise the FX Option has no upward limit. Even if the Client's losses are limited (e.g. to the amount of the Premium), they may still exceed the amount of the Client's initial deposit if the Client is trading on margin. If the Client sells an FX Option to the Bank, **the Bank is free to exercise such FX Option in accordance with the FX Option's terms, even if it means that the Client will be required to make a payment potentially in excess of the amounts the Client has deposited with the Bank.**

8. OTHER RISKS

8.1. The risks associated with Transactions are even higher if the said Transactions are made on currencies or other underlying assets directly or indirectly connected with emerging markets. Indeed, many emerging markets lack a strong infrastructure. Telecommunications are generally poor, and banks and other financial systems are not always well developed, well regulated and well integrated. These countries may also have considerable external debt which could affect the proper functioning of their economies with a corresponding adverse impact on the performance of their markets. Tax regimes may be subject to the risk of a sudden imposition of arbitrary or onerous taxes, which could adversely affect investors.

8.2. **When holding Instruments, the Client's situation may be materially different from the situation of holders of the Underlying Assets.** In particular, the Client may be unable to benefit from Corporate Actions as a holder of the Underlying Asset would have. In this respect, the Client acknowledges that, in accordance with the Special Terms and Conditions, the Bank has significant discretion in determining if and how to reflect Corporate Actions on any Open Position of the Client and that the Bank has no obligation to inform the Client of any Corporate Action or any action taken by the Bank in relation to a Corporate Action. The Client further acknowledges that certain decisions of the Bank in relation to Corporate Actions may have significant consequences for the Client. In particular, if new Transactions are initiated, they may impact applicable Margin requirements. The Client is solely responsible for obtaining information on Corporate Actions, monitoring his Account and ensuring that he is in a position to bear the possible consequences of any Corporate Action. Should the Client have any doubt as to his capacity to maintain Open Positions in light of a possible Corporate Action, the Client must take appropriate

measures to reduce or close the relevant Open Positions, or take any such other action as may be appropriate.

8.3. The Client is solely responsible for assessing the tax consequences of Corporate Actions. Where a Cash Distribution is made in respect of any Instrument held by the Client, the amount received by the Client may reflect the net amount of the relevant distribution on the Underlying Asset, after deduction of any applicable withholding or similar tax. The Bank makes no representation as to whether the Client will be in a position to obtain a tax refund or similar relief in respect of any Cash Distribution. The Client acknowledges and accepts that, when holding an Instrument instead of its Underlying Asset, the Client may be prevented from claiming any tax refund on Cash Distributions or benefit from any other arrangement that may benefit the holders of the Underlying Asset.

8.4. Transactions bear risks inherent to Internet and technology, as described in the General Terms and Conditions. Such risks include risks associated with latency, which the Client shall reduce by ensuring that his IT and mobile devices used for carrying out Transactions benefit from the fastest possible internet connectivity.

9. CLIENT'S SITUATION

9.1. In the light of the risks described in this Disclosure Statement, **the Client should carry out Transactions only if he understands the nature of such Transactions and the extent of his exposure to such risks, and if such Transactions are suitable for him. Trading foreign exchange instruments and contracts for difference is not suitable for many members of the public.**

9.2. The Client undertakes to analyse his personal (in particular financial and tax) situation carefully before trading in Instruments. The Client confirms that he has the necessary financial resources for all the Transactions that he carries out or Orders to be carried out. **The Client should only invest assets if he can afford to lose them without having to change his standard of living. Further, the Client will only enter into Transactions where potential losses exceed the amounts invested if the Client can sustain losses far in excess of the amounts invested. The Client will stop trading foreign exchange instruments and contracts for difference if his personal situation no longer permits it. Any amount invested in foreign exchange instruments or contracts for difference should be considered as "risk capital", i.e. money that the Client can afford to lose. Foreign exchange instruments and contracts for difference present extremely high risk and are not suitable for retirement funds or to generate safe returns.**

9.3. The Client is solely responsible for deciding whether the Transactions that he carries out are suitable in view of his personal (in particular financial and tax) situation, his investment objectives and other relevant circumstances. In case of doubt, the Client should seek independent financial advice.

10. CLIENT'S CONFIRMATIONS

10.1. As of the date of the opening of the Account, the date of any Transaction in relation to the Account and any date on which the Agreement or any part thereof is revised, updated or amended, **the Client confirms to the Bank and agrees to the following for the benefit of the Bank that:**

- a. **The Client acknowledges and understands that trading in foreign exchange instruments and contracts for difference is highly speculative, involves an extreme degree of risk and is generally suitable only for persons who can assume and sustain a risk of loss**

far in excess of the amount they have invested.

- b. **The Client acknowledges and understands all the risks associated with Transactions**, in particular the risk resulting from the use of a significant leverage effect, the volatility of the markets, the liquidity risk, the legal risks resulting, in particular, from the market rules applicable to Transactions, the technology risks and any other risks that may lead to a loss or any other Damage. **The Client confirms that he is willing to assume these risks.**

- c. The Client acknowledges that he has read and understood the General Terms and Conditions and the Special Terms and Conditions, as well as the information contained in the documents to which these Special Terms and Conditions refer, and in particular the Bank's website, the Trading Rules and the various prospectuses, fact sheets and other information sheets available on the Bank's website or on any Platform.
- d. The Client in particular confirms that he has understood the explanations about any restrictions to use the Platforms, the leverage effect and the modification of the maximum leverage effect, the Required Margin and the Automatic Liquidation System, as set forth in the Special Terms and Conditions and other documents to which the Special Terms and Conditions refer. The Client also confirms that he has understood and accepts the role of the Bank in the Transactions and the risks and conflicts of interest related thereto.

- e. The Client acknowledges and accepts that the Bank is entitled to liquidate his positions that are not adequately margined and the Client will be liable for all losses as a result of such liquidation. The Client acknowledges that the Bank reserves the right to change the Liquidation Trigger at its sole discretion.

- f. The Client confirms that **neither the Bank nor its directors, managers, officers, employees, agents and other representatives guaranteed or guarantee to the Client that Transactions will generate profits for the Client. Moreover, past yields and profits are no indication of future performance.**

- g. The Client acknowledges and understands that the **Client may in certain cases experience losses in excess of the value of the Client's assets deposited with the Bank, in which case the Client will be liable towards the Bank for the uncovered amount.**

- h. **The Client confirms that the Transactions he will carry out are suitable for him.**

11. GOVERNING LAW AND JURISDICTION

11.1. This Disclosure Statement, as well as the General Terms and Conditions and the Special Terms and Conditions, shall exclusively be governed by and construed in accordance with substantive Swiss law.

11.2. The place of performance, the place of enforcement against Clients residing abroad and the exclusive place of jurisdiction for any dispute arising from or in relation to this Disclosure Statement, the General Terms and Conditions and the Special Terms and Conditions, shall be at the seat of the Bank in Gland/VD in Switzerland. However, the Bank reserves the right to bring such proceedings before the competent courts having jurisdiction at the Client's place of residence or domicile or before any other competent court, in which case substantive Swiss law shall remain exclusively applicable.

I declare that I have read, understood and accepted this Disclosure Statement, the General Terms and Conditions and the Special Terms and Conditions. I acknowledge and accept that the Bank will not be bound by any "best execution" or similar requirement when carrying out Orders or executing Transactions.

Date:

First Name and Last Name:

Signature :